SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS

OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NUMBER	PAGE	OF
1175425	1	2

2. CONTRACT NO.	3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			1240BD27Q0009	10/20/2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER (No collect calls)	8. OFFER DUE DATE/LOCAL TIME
	JORGE SOMOZA	509-423-2224	11/03/2026 1400 PS

9. ISSUED BY — CODE 40BD

USDA-FS CSA NORTHWEST 2
1220 SW 3RD AVE
STE 310
PORTLAND OR 97204-2829

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR:

- ☒ SMALL BUSINESS
- ☐ HUBZONE SMALL BUSINESS
- ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
- ☐ WOMEN-OWNED SMALL BUSINESS (WOSB)
- ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
- ☐ 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 238290

SIZE STANDARD: $22

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED
☐ SEE SCHEDULE

12. DISCOUNT TERMS

13a. ☐ THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION
☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO — CODE 05K3

USDA FOREST SERVICE
GIFFORDPINCHOT NATIONAL FOREST
501 E 5TH STREET 404
VANCOUVER WA 98661

16. ADMINISTERED BY — CODE 40BD

USDA-FS CSA NORTHWEST 2
1220 SW 3RD AVE
STE 310
PORTLAND OR 97204-2829

17a. CONTRACTOR/ OFFEROR — CODE — FACILITY CODE

18a. PAYMENT WILL BE MADE BY — CODE

EMAIL:_____

SAM UEID:_____

TELEPHONE NO.

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Delivery: 02/05/2027 Period of Performance: 11/05/2026 to 02/05/2027				
0001	Inspection of backup generator system	1	DO	Do Not Enter Prices Here	
0002	Manufacturers recommended service maintenance, per operational hours	1	DO	Do Not Enter Prices Here	
	Continued ...				

(Use Reverse and/or Attach Additional Sheets as Necessary)

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Government Use Only)*

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED.

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.

☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED
		JORGE A. SOMOZA	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0003	Manufacturers recommended service maintenance, per operational hours, and repair of current generator malfunction	1	DO	Do Not Enter Prices Here	

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	

38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

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SECTION B – CONTINUATION OF SF-1449

SCHEDULE OF ITEMS
GIFFORD PINCHOT NATIONAL FOREST
JOHNSTON RIDGE OBSERVATORY BACKUP GENERATOR REPAIRS

Contract Line Items (Base)					
Johnston Ridge Observatory Backup Generator Repairs					
Item No.	**Description**	**Unit of Issue**	**Qty**	**Unit Price**	**Total Price**
1	Inspection of backup generator system	LS		$	$
2	Manufacturer's recommended service maintenance, per operational hours, for engine, radiator, exhaust, and diesel fuel systems.	LS		$	$
3	Manufacturer's recommended service maintenance, per operational hours, for the controller, alternator, and automatic transfer switch.	LS		$	$
		Total			$

B.2 CONTRACTOR INFORMATION

Unique Entity ID (SAM): _____

EMAIL: _____

SCHEDULE NOTES

1. One award will be made from this solicitation, contractors must submit pricing for all items, other than the Optional Item for the initial bid.

2. Mobilization is considered an incidental item to this work; this includes, but is not limited to, the following: equipment, materials, and labor. Ensure that mobilization costs are accounted for as necessary within the respective bid items.

3. County permits are not required.

4. All electrical work and mechanical work involving the inspection and manufacturer recommended maintenance, per operational hours, are considered incidental items to this work; this includes, but is not limited to, the following: specialized equipment, standard equipment, materials, labor, disposal/waste fees. Ensure that all electrical work and mechanical work costs are accounted for as necessary within the respective bid items. All work for this contract must comply with County, State, and Federal regulations, and standards.

5. Once Item 1 is accomplished and Repairs have been identified then there might be a Contract Modification to cover the cost of the repairs needed before proceeding to Items 2 and 3. It is assumed that there is an issue with the generator, but the specific issue is unknown.

Note: Prospective awardee shall be registered and active in the System for Award Management (SAM) data base when submitting an offer and shall continue to be registered until time of award, during performance, and through final payment of a contract resulting from this solicitation. Information on registration may be obtained via the internet at: http://www.sam.gov. All contractors and vendors must complete the electronic version of the Representations and Certifications in the SAM system.

Address questions about this solicitation to Jorge Somoza at jorge.somoza@usda.gov.
For Technical Questions address them to Heath Cameron at (360) 449-7813 or email heath.cameron@usda.gov

JOHNSTON RIDGE OBSERVATORY BACKUP GENERATOR REPAIRS
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Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

52.212-4	Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
	☐ Alternate I (Nov 2025) of 52.212-4
52.203-17	Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.222-50	Combating Trafficking in Persons (Nov 2025)
	☐ Alternate I (Nov 2025) of 52.222-50
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.232-39	Unenforceability of Unauthorized Obligations (Jun 2013)
52.232-40	Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3	Protest After Award (Sep 2025)
52.233-4	Applicable Law for Breach of Contract Claim (Sep 2025)
52.240-91	Security Prohibitions and Exclusions (Nov 2025)
	☐ Alternate I (Nov 2025) of 52.240-91
52.244-6	Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked:.

☐	52.203-6	Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
☐	52.203-13	Contractor Code of Business Ethics and Conduct (Nov 2021)
☐	52.204-9	Personal Identity Verification of Contractor Personnel Jan 2011
☒	52.204-13	System for Award Management—Maintenance (Nov 2025)
☐	52.204-91	Contractor identification (Nov 2025)

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☒ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
☐ 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (Sep 2025)
☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
☐ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)
☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
☐ Alternate I (Mar 2020).
☐ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
☐ 52.219-9 Small Business Subcontracting Plan (Nov 2025)
☐ Alternate III (Nov 2025) of 52.219-9.
☐ Alternate IV (Nov 2025) of 52.219-9
☐ 52.219-14 Limitations on Subcontracting (Nov 2025)
☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)
☐ 52.219-33 Nonmanufacturer Rule (Nov 2025)
☒ 52.222-3 Convict Labor (June 2003)
☐ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
☐ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
☐ Alternate I (Jul 2014) of 52.222-35
☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
☐ Alternate I (Jul 2014) of 52.222-36
☐ 52.222-37 Employment Reports on Veterans (Nov 2025)
☐ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010
☒ 52.222-41 Service Contract Labor Standards (Aug 2018)
☒ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)

This Statement is for Information Only:
It is not a Wage Determination

Employee Class	Monetary Wage -- Fringe Benefits
WG-10	$27.61

☐ 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)
☐ 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014)
☐ 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)
☐ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)

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- ☐ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
- ☒ 52.222-90 Addressing DEI Discrimination by Federal Contractors (Apr 2026)
- ☐ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)
- ☐ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
  - ☐ Alternate I (May 2008) of 52.223-9
- ☐ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)
- ☐ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
- ☐ 52.223-23 Sustainable Products and Services (Nov 2025)
- ☐ 52.224-3 Privacy Training (Jan 2017)
  - ☐ Alternate I (Jan 2017) of 52.224-3
- ☐ 52.225-1 Buy American-Supplies (Nov 2025)
  - ☐ Alternate I (Oct 2022) of 52.225-1
- ☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
  - ☐ Alternate II (Nov 2025) of 52.225-3.
  - ☐ Alternate III (Nov 2025) of 52.225-3.
  - ☐ Alternate IV (Oct 2022) of 52.225-3
- ☐ 52.225-5 Trade Agreements (Nov 2023)
- ☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
- ☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)
- ☐ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
- ☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)
- ☐ 52.229-12 Tax on Certain Foreign Procurements
- ☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
- ☐ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
- ☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)
- ☐ 52.232-36 Payment by Third Party (Nov 2025)
- ☒ 52.237-2 Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
- ☐ 52.237-3 Continuity of Services (Jan 1991)
- ☐ 52.240-92 Security Requirements (Nov 2025)
- ☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (No 2025)
- ☐ 52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025)

☐ Alternate I (Apr 2023) of 52.247-64.
☐ Alternate II (Nov 2021) of 52.247-64

Other Applicable Clauses

52.217-8	Option to Extend Services (Nov 1999)
	30 calendar days prior to contract expiration
52.237-2	Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
52.245-1	Government Property (Sep 2021)
	☒ Alternate I (Sep 2021) of 52.245-1
52.245-9	Use and Charges

AGAR Clauses

AGAR 452.203-70 Unenforceable Supplier Terms (MAY 2026)

(a) Definitions.

Supplier terms mean provisions customarily drafted by vendors of supplies or services and intended to create a binding legal obligation on the end user. The term applies:

1. Regardless of the format or style of the document. For example, supplier terms may appear in standard terms of sale or lease, Terms of Service (TOS), End User License Agreement (EULA), or another similar legal instrument or agreement, and may be presented as part of a proposal or quotation responding to a solicitation for a contract or order or otherwise become effective after the contract date.

2. Regardless of the media or delivery mechanism used. For example, supplier terms may be presented as one or more paper documents or may appear on a computer or other electronic device screen during a purchase, software installation, other product delivery, registration for a service, or another transaction.

(b) Applicability. When any supply or service acquired under this contract is subject to supplier terms, the supplier terms are deemed part of the contract only to the extent they are consistent with this clause. Supplier terms that conflict with any part of this clause, the contract, or Federal law are void and will not be considered incorporated into a contract, even if they are physically present in a contract documentation or systems. In the event of any inconsistency between supplier terms and this contract, this clause and the terms of the Government contract must govern and supersede any supplier terms in all cases.

(c) Authorization Required. Notwithstanding any other provision, no supplier terms must be binding on the Government unless the term is expressly authorized on the USDA Supplier Terms Authorization Form signed by the Contracting Officer, and the completed Authorization Form has been incorporated into the contract.

(d) Unenforceable Terms. Any supplier terms that impose obligations or restrictions inconsistent with applicable Federal law are unenforceable against the Government and deemed stricken from the agreement. This includes, but is not limited to, any clause that:

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(1) Requires the Government to pay future fees, penalties, interest, legal costs, early-termination fees, cancellation fees, minimum purchase commitments, true-up payments, seat-count minimums, usage minimums, continued-use charges, or any other financial obligation not expressly authorized by the contract.

(2) Requires the Government to indemnify the contractor or any other entity.

(3) Restricts the Government's ability to obtain similar supplies or services from another source.

(4) Imposes any penalty, financial or otherwise, based on the Government's decision not to exercise an option.

(5) Subjects the United States Government to the laws of any U.S. state, territory, district, municipality, or foreign nation, except where Federal law expressly permits such application.

(6) Requires dispute resolution in a forum or venue other than one prescribed by applicable Federal law.

(7) Establishes a period of limitations for bringing an action that differs from that provided by applicable Federal law.

(8) Grants the contractor rights to use, mine, access, aggregate, analyze, or otherwise exploit Government data, usage data, or metadata.

(9) Deems the Government to have accepted initial or revised terms based on silence, continued performance, or failure to object.

(10) Grants the supplier the right to audit Government facilities, systems, records, or use of the product or service, except as expressly authorized by the contract and applicable Federal law.

(11) Requires the Government to accept supplier security requirements, network access requirements, monitoring, penetration testing, or other technical or security measures.

(12) Permits the supplier to suspend, degrade, or terminate access to products or services based on alleged non-payment, alleged breach, automated security triggers.

(13) Limits the Government's right to use, install, access, test, evaluate, or transfer the licensed product or service in any manner consistent with the contract and Federal law.

(14) Requires the Government to store, process, maintain, or transmit data in a particular geographic location, or permits the supplier to transfer Government data outside the United States, except as expressly authorized by applicable Federal law.

(15) Authorizes the supplier to use the Government's name, seal, trademark, logo, or any reference to the Government as an end user or customer for marketing, publicity, promotional activities, press releases, or similar purposes.

(16) Incorporates by reference, or requires the Government to accept, terms or conditions imposed by any third party, subcontractor, or upstream service provider, unless such terms are expressly incorporated into the contract by bilateral modification.

(17) Limits, conditions, or negates the contractor's performance obligations, service levels, or remedies through a supplier-provided service level agreement (SLA).

(18) Uses Government data, usage data, metadata, prompts, content, or interactions to train, fine-tune, improve, or derive any artificial intelligence, machine learning, or automated decision-making model.

(19) Subjects the Government to automated decision-making, automated risk scoring, automated content moderation, or any algorithmic process that may affect access, performance, or rights under the contract.

(20) Utilizes artificial intelligence or algorithmic tools that produce decisions, recommendations, or outputs affecting contract performance without providing transparency, explainability, auditability, and bias-mitigation consistent with applicable Federal law and policy.

(21) Profiles, tracks, or analyzes Government user behavior, preferences, communications, or interactions for personalization, marketing, or algorithmic optimization purposes.

(e) Non-binding Actions. Neither the Government nor any Government authorized end user is deemed to have consented to any term, condition, or clause by virtue of its inclusion in the supplier agreement or through the use of clickwrap, browsewrap, "I agree" mechanisms, or similar means. Execution of such mechanisms does not bind the Government or its authorized end users to any unenforceable terms.

(f) End user. The supplier agreement must bind the ordering activity as the end user to the extent it does not conflict with the terms of this clause, but it must not bind or impose personal liability on any Government employee or any person acting on behalf of the Government in their personal capacity.

(g) Law and disputes. The supplier agreement is governed by Federal law.

(h) Statutory exception. This clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(i) Continued performance. The supplier or licensor must not unilaterally revoke, terminate, or suspend any rights granted to the Government except as allowed by the contract. If the supplier or licensor believes the ordering activity to be in breach of the supplier agreement, it must pursue its rights under the Contract Disputes Act or other applicable Federal statute while proceeding diligently with performance, pending final resolution of any dispute in accordance with the Disputes Clause at FAR 52.212-4(d) or FAR 52.233-1, as applicable.

(j) Arbitration. Binding arbitration must not be used unless specifically authorized by agency guidance.

(k) Equitable or injunctive relief. Equitable or injunctive relief, including the award of attorney fees, costs, or interest, may be awarded against the United States Government only when explicitly provided by statute (e.g., the Prompt Payment Act or the Equal Access to Justice Act).

(l) Revisions to supplier agreements. Any revisions to the supplier agreement must be incorporated into the contract using a bilateral modification. Unilateral revisions are not binding on the Government.

(m) No automatic renewals. If any license or service tied to periodic payment is provided under the supplier agreement (e.g., annual software maintenance or annual lease term), such license or service must not renew automatically upon expiration of its current term without prior express written consent from an authorized Government representative.

(n) Indemnification. Any clause of the supplier agreement requiring the supplier or licensor to defend or indemnify the end user is amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.

(o) Taxes or surcharges. Any taxes or surcharges which the supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the associated Government contract or order and must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed otherwise.

(p) Non-assignment. The supplier agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval, except as expressly permitted by FAR 52.212-4(b) or FAR 52.232-23, as applicable.

(q) Confidential information. If the supplier agreement includes a confidentiality clause, such clause is amended to state that neither the agreement nor the contract price list, as applicable, must be deemed "confidential information." Issues regarding release of "unit pricing" will be resolved consistent with the Freedom of Information Act. Notwithstanding anything in the supplier agreement to the contrary, the Government may retain any confidential information as required by law, regulation, or its internal document retention procedures for legal, regulatory, or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of the supplier agreement.

(r) Conflict with Federal law. If any other language, provision, or clause of the supplier agreement conflicts or is inconsistent with Federal law or the terms and conditions of this contract, such language, provisions, or clauses will be considered null and void and will not be binding on the United States Government.

(End of Clause)

452.204–70 Modification for Contract Closeout (Apr 2026)

(a) If unliquidated funds in the amount of $1000 or less remain on the contract, the Contracting Officer (Contracting Officer) may issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but is not required to provide a signature. The Contracting Officer will immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) For commercial contracts not exceeding the simplified acquisition procedure threshold under FAR 12.001(c), if more than $1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification. Only the modification requires the

contractor's signature, though a Release of Claims may be requested. If the required documents are not returned within 60 days, the Contracting Officer will issue a unilateral modification and proceed with closeout once performance is complete, acceptance is confirmed, and final payment is made.

(c) For all other non-commercial or non–cost-reimbursement contracts, if more than $1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification and a Release of Claims, both requiring contractor signature. If these documents are not returned within 120 days, the Contracting Officer will issue a unilateral modification u and proceed with closeout upon completion of performance, acceptance, and final payment.
(End of Clause)

AGAR 452.236-70 Electronic Submission of Payment Requests (Sep 2026)

(a) Definitions. As used in this clause—

Payment request means a bill, voucher, invoice, or request for contract financing payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), and the applicable Payment clause included in this contract.

(b) Except as provided in paragraph (c) of this clause, the Contractor must submit payment requests electronically using the invoice instructions provided in the contract.

(c) The Contractor may submit payment requests using alternate methods when the Contracting Officer authorizes alternate procedures in writing in accordance with Treasury procedures.

(d) If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request.

(e) The Contractor certifies that, by submitting an invoice to the Government, the supplies and/or services billed have been shipped, rendered, or delivered in accordance with instructions issued by the ordering officer; that they are reflected in the quantities and/or period of performance stated on the invoice; and that such supplies and/or services conform to the quantity and quality requirements specified in the applicable contract, order, or blanket purchase agreement.

(f) By requesting payment under this award, the contractor certifies that, to the best of its knowledge and belief, it does not operate programs promoting diversity, equity, and inclusion that violate any applicable Federal anti-discrimination laws.

(End of clause)

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Title	Pages
1. Performance Work Statement	5
2. Generator's Pictures	16
Page No | Description	
3. Location Map	1
4. DOL Wage Decision No. WA 2015-5529	7
5. Past and Current Contract Information	1

SCOPE OF CONTRACT

This contract involves the inspection, scheduled maintenance, and system repair to the backup diesel generator system for Johnston Ridge Observatory (JRO) located in Toutle, WA.

The backup diesel generator is a "Simpower Generator Systems" 1000KW, 1250KVA system that has a Mitsubishi engine and a MagnaMax Synchronous AC Generator.

- Unit Model: SP1000D3PS12N-PTA2
- Serial Number: 8855
- Mitsubishi
    - Model: S12N-PTA2
    - Serial Number: 20919
- MagnaMax Synchronous AC Generator
    - Model: 741RSL20648B
    - Serial Number: XL 3835609
    - 3 Phase
    - 60Hz
    - Continuous 975KW, 277/480V, 1219kVA, 1466Amp

Specific details regarding the current systems are provided below and in the attachment photos.

PROJECT LOCATION

JRO address for this work is: 21000 Spirit Lake Highway, Toutle, WA 98649.

Latitude: 46*18'11.74"N
Longitude: 122*15'54.62"W

GUIDELINES FOR SUBMITTALS

Submittals are required by their corresponding specifications (basic reference or detailed requirement). Work covered on requiring submittals shall not begin until submittals have been approved.

Submittals shall include the following unless otherwise required in the specification:

1. Date and revision dates.
2. Project name and contact number.
3. Names of contractor, subcontractor, supplier, and manufacturer.
4. Specifications section number (if applicable).
5. Applicable standards such as ASTM or Federal Specifications.
6. Contractor's stamp, initial, or signature, certifying the review of submittal, verification of measurements, and compliance with contract documents.
7. Provide all submittals within 10 calendar days of the contract award unless otherwise required by the specification.

Manufacturer's requirements:
Supply manufacturer's catalog sheets or brochures with diagrams, schedules, or performance

charts. Manufacturer's product information provided shall clearly identify pertinent materials or models, dimensions, clearances, and all other applicable specification as required in this solicitation and resulting contract.

Approval or Rejection Time Allowance:
Submittals will be reviewed and either approved or rejected after their receipt by the Contracting Officer and COR based on tables listed below.

PRODUCTS SAMPLES AND/OR SUBMITTALS

Title	*Referenced by Contract Clause or Specification No.*	*Time for Government Approval*
Project Schedule	FAR 52.236-15	14 days
Project Specific Safety Plan	FAR 52.236-13	14 days
Manufacturer's Product Info (As applicable)	Specifications Part 2	14 days
Manufacturer's Product Manuals (As applicable)	Specifications Part 2	14 days
Product Warranties (As applicable)	Specifications Part 2	14 days
System Operation Test	Specifications Part 2	14 days

PROJECT COORDINATION/OTHER WORK IN THE AREA

Contractor will be required to coordinate with Contracting Officers Representative as needed to obtain access. The project site will need to remain closed to the public during the duration of the work, Contractor will be expected to coordinate with personnel to a reasonable extent. (see project Specifications for additional information)

INSPECTION AND TESTING PERFORMED BY GOVERNMENT

The Government will perform testing, and quality assurance inspections of work in progress where the responsibilities are not expressly assigned to the Contractor by the Supplemental Specifications. The Contractor is responsible for all Quality Control. Government inspections and tests are for the sole benefit of the Government and do not-

(1) Relieve the Contractor of responsibility for providing adequate quality control measures;

(2) Relieve the Contractor of responsibility for damage to or loss of the material before acceptance;

(3) Constitute or imply acceptance;

Commencement, Prosecution, and Completion of Work

The Contractor shall be required to (a) commence work under this contract within ***14*** calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than ***90 days*** from the receipt of the notice to proceed. The time stated for completion shall include final cleanup of the premises.

Estimated start work date is November 5, 2026.

Work activity shall be limited to the hours between 7:00 a.m. and 7:00 pm. Monday through Friday, unless other hours are approved in writing by the CO and no work will be permitted on Federal Holidays. The Contractor shall conduct activities so that interference with the occupants shall be kept at a minimum.

The Contractor shall use measures and precautions necessary to warn and protect the occupants and Government personnel during work at the project site. Such actions include, but are not limited to, furnishing, and maintaining barricades and signs around the work site and roping off the area.

Post Award Conference

A post award conference with the successful offeror is required. It will be scheduled and held at a mutually agreed time after the date of contract award. The conference will be held via Microsoft Teams and a dial in number will be included with meeting invitation.

OTHER REQUIREMENTS

DESIGNATION OF CONTRACTING OFFICER REPRESENTATIVE

The Contracting Officer's Representative (COR) is responsible for administering the performance of work under this contract. In no event, however, will any understanding, agreement, modification, change order or other matter deviating from the terms of this contract be effective or binding upon the government unless formalized by proper contractual documents executed by the Contracting Officer prior to completion of the contract. The Contracting Officer should be informed as soon as possible or any actions, or inactions, by the Contractor, or the Government, which will change the required delivery or completion times stated in the contract, and the contract will be modified accordingly. (This does not apply to individual assignments which were issued by the COR provided they do not affect the delivery schedule, or the performance period stated in the contract.) On all matters that pertain to the contract terms, the Contractor must communicate with the Contracting Officer. Whenever, in the opinion of the Contractor, the COR requests effort outside the scope of the contract, the Contractor should so advise the COR. If the COR persists and there still exists a disagreement as to proper contractual coverage, the Contracting Officer should be notified immediately, preferably in writing, if time permits. Proceeding with work without proper contractual coverage could result in nonpayment or necessitate submittal of a contract claim.

ADDITIONAL PROJECT DETAILS

The current hours on the generator are 2706. Based upon available documentation, there was no maintenance accomplished to the generator system at the manufacturer's recommendation of 2000 hours. Therefore, accomplish all manufacturer's recommended work be accomplished up to the 2700 hours. If there is work that is recommended at 3000 hours, also account for that work to be accomplished.

Additional research on this system provided the following information:

- This generator system came from British Columbia. It consists of a Mitsubishi engine, which is the same engine that is used in tugboats in the Pacific Northwest and also for trolley fishing boats. The Mitsubishi engine is largely used within the maritime industry, and most generator companies do not service the Mitsubishi engine.

Task 1: Base Items

Item 1- Inspection of backup generator system:

- The generator last operated on 11/14/2024. The last alarm for the system was "High Coolant Temp." The generator system was allowed to cool, and attempts were made to restart the system, but the generator would not fully turn-over. The system was then taken off-line pending a full inspection.
- This bid item will allow the contractor to accomplish a full inspection of the generator system, gather information to address Base Bid Items 2 and 3, and begin the process of determining the reason for the generator malfunction and necessary repair.
- It is understood that determining the full malfunction may not take place until all manufacturer's recommended services are accomplished to the complete generator system.

Item 2- Manufacturer's recommended service maintenance, per operational hours, for engine, radiator, exhaust, and diesel fuel systems:

- Ensure that all service maintenance for items such as, but not limited to, fluids, filters, belts, internal engine parts (spark plugs, piston rings and bearings for example), gauges, batteries, electrical wires, gaskets, hoses and clamps, and grease points are accomplished.
- Ensure that all maintenance up to at least 3,000 hours is accomplished.
- Document all work accomplished.

Item 3- Manufacturer's recommended service maintenance, per operational hours, for controller, alternator, and automatic transfer switch:

- Ensure that all service maintenance for items such as, but not limited to belts, internal parts (bearings example), gaskets, electrical wires, relays, gauges, and grease points are accomplished.
- Ensure that all maintenance up to at least 3,000 hours is accomplished.
- Document all work accomplished.

Task 2: Over and Above Work: Work not covered under Task 1 of this PWS may be considered Over and Above Work. The contractor shall submit the following information for all over and above work: type of work required; detailed work description; specific location, estimated labor hours; materials required to complete the work, and proposed cost. Data shall be sufficient to satisfy contract requirements and obtain the authorization of the CO to perform the proposed work.

Repairs needed due to current generator system malfunction, not associated with manufacturer's recommended service maintenance, per operational hours, for backup generator system:

As work is accomplished for all Items, additional repairs may be discovered. The necessary repairs may be discovered while Item 1 is being accomplished, and will need to be addressed prior to accomplishing work on Items 2 and 3. The Government will do a Contract Modification within scope of the Contract after the work price is found to be fair and reasonable and repairs can proceed.

USE OF PREMISES

(a) A storage site will be permitted within the project area. The Forest Service assumes no liability for materials stored within the storage site. The Contractor will be allowed to erect a temporary fence to secure materials and equipment; however, the fence shall be removed, and the site restored prior to final acceptance of the contract.

(b) Potable water is available for use during construction. The Contractor shall carefully conserve any utilities furnished without charge.

(c) The Government shall make all reasonably required amounts of electricity available to the Contractor from existing outlets and supplies. The Contractor shall carefully conserve any utilities furnished without charge.

(d) Sanitary facilities will be available on-site during construction.

Solicitation No: 1240BD27Q0009
Johnston Ridge Observatory Backup Generator Repairs

Below are Backup Generator Photos:

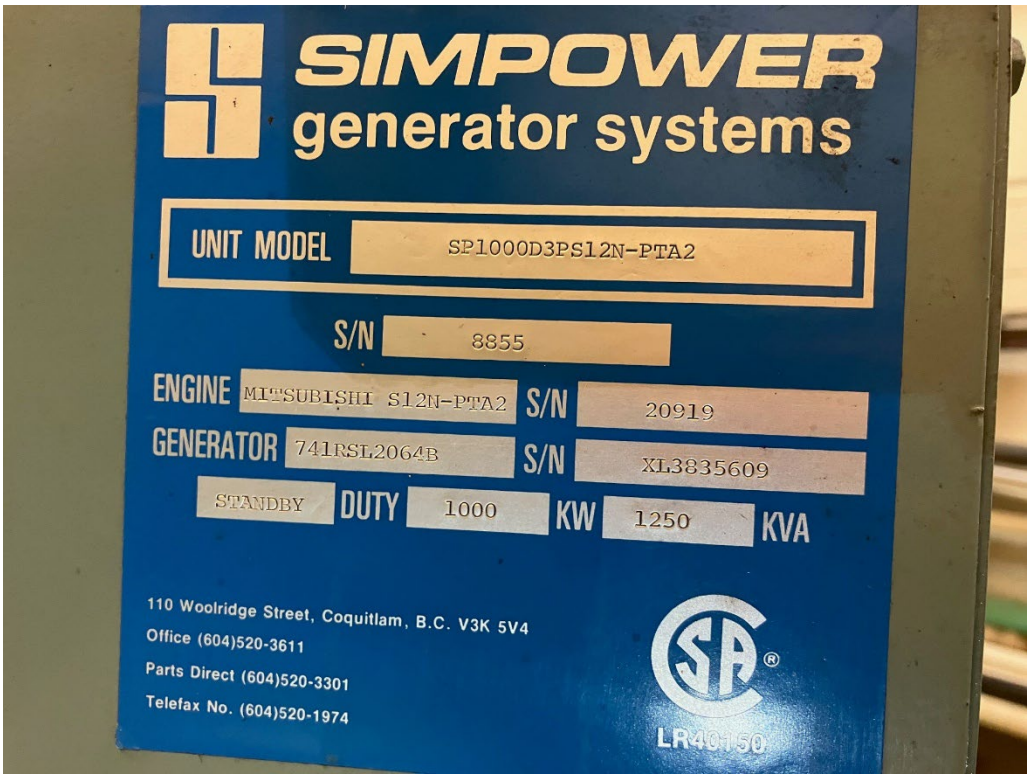


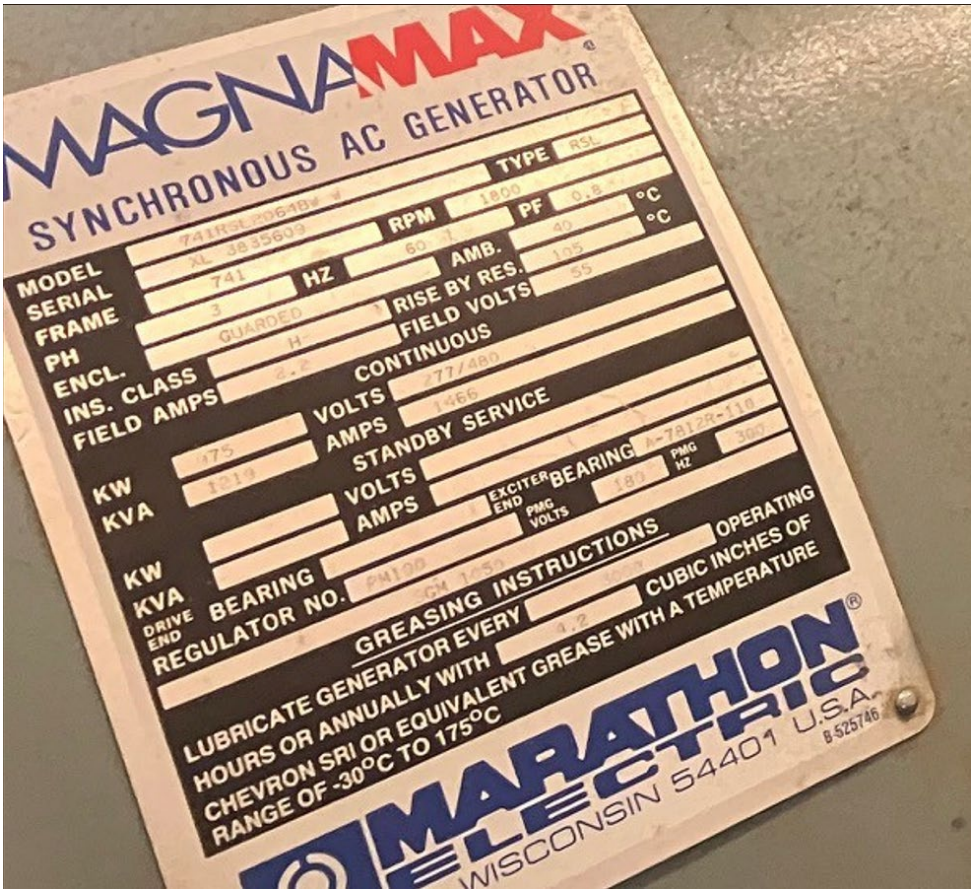


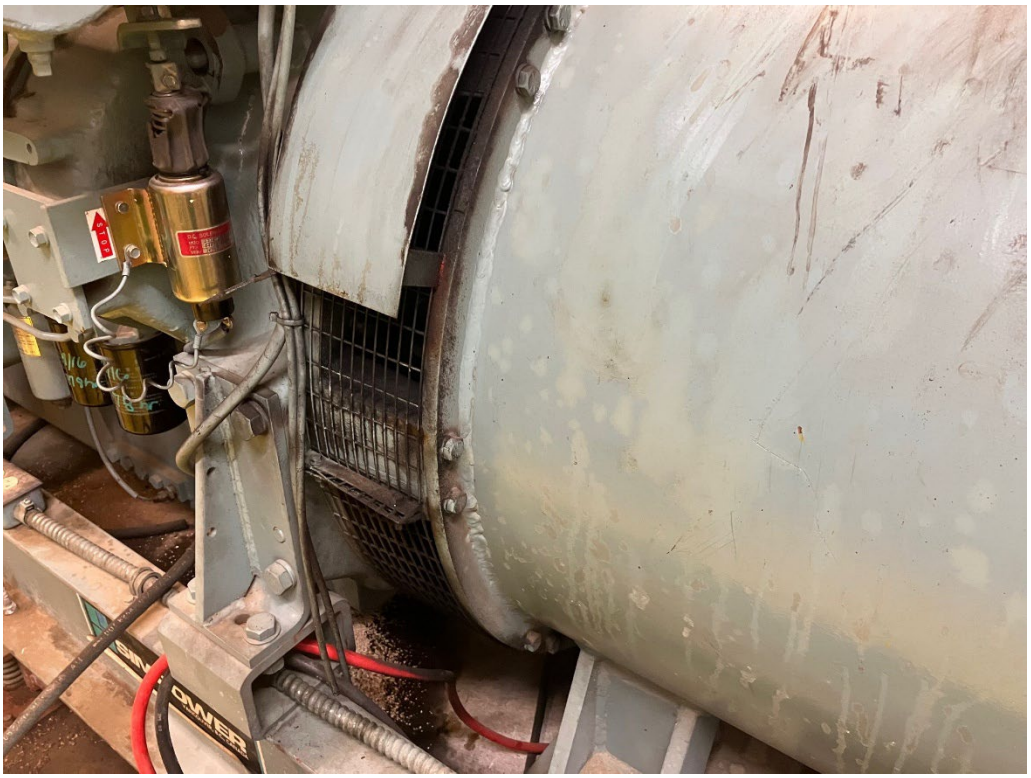



SIMPOWER
SIMPOWER


SIMPOWER
VANCOUVER, B.C.
MODEL # S12N-PTA2
LITERS 43
SERIAL # 20919
SPEC # 8855

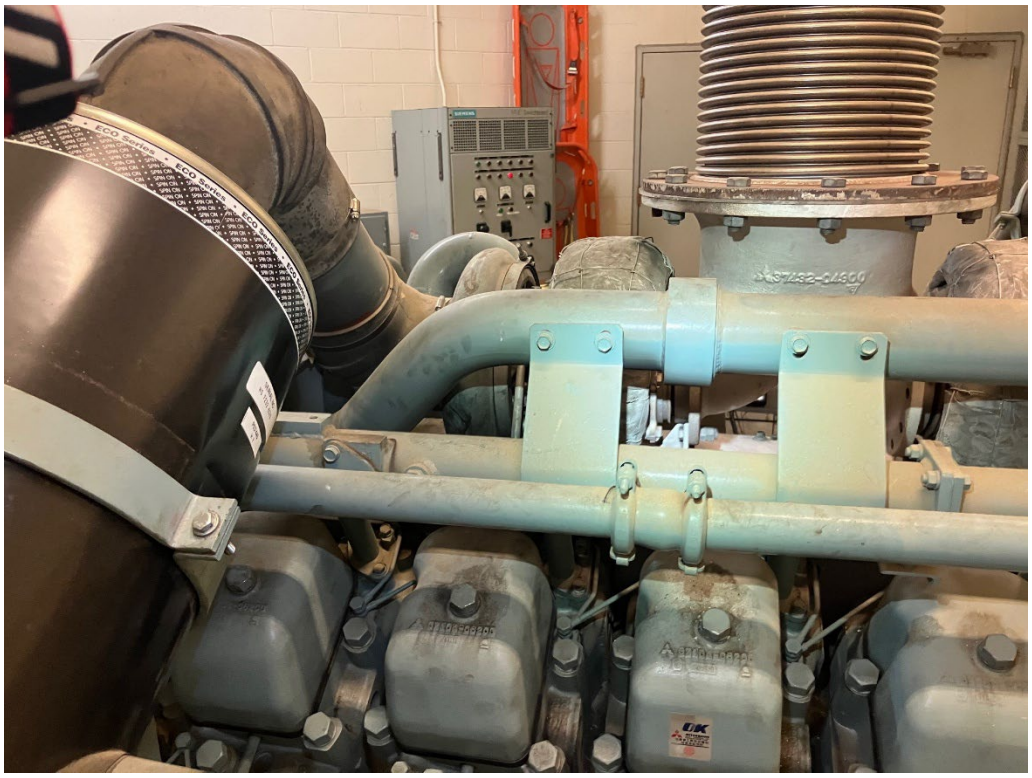

SIMPOWER
generator systems
UNIT MODEL SP1000D3PS12N-PTA2
S/N 8855
ENGINE MITSUBISHI S12N-PTA2 S/N 20919
GENERATOR 741RSL2064B S/N XL3835609
STANDBY DUTY 1000 KW 1250 KVA
110 Woolridge Street, Coquitlam, B.C. V3K 5V4
Office (604)520-3611
Parts Direct (604)520-3301
Telefax No. (604)520-1974
LR40150


MAGNAMAX
SYNCHRONOUS AC GENERATOR
MODEL
SERIAL
FRAME
PH
ENCL.
INS. CLASS
FIELD AMPS
HZ
RPM
TYPE
PF
AMB.
RISE BY RES.
FIELD VOLTS
CONTINUOUS
VOLTS
AMPS
STANDBY SERVICE
KW
KVA
EXCITER END BEARING
PMG VOLTS
PMG HZ
DRIVE END BEARING
REGULATOR NO.
GREASING INSTRUCTIONS
LUBRICATE GENERATOR EVERY
HOURS OR ANNUALLY WITH
CHEVRON SRI OR EQUIVALENT GREASE WITH A TEMPERATURE
RANGE OF -30°C TO 175°C
CUBIC INCHES OF
OPERATING
MARATHON ELECTRIC
WISCONSIN 54401 U.S.A.





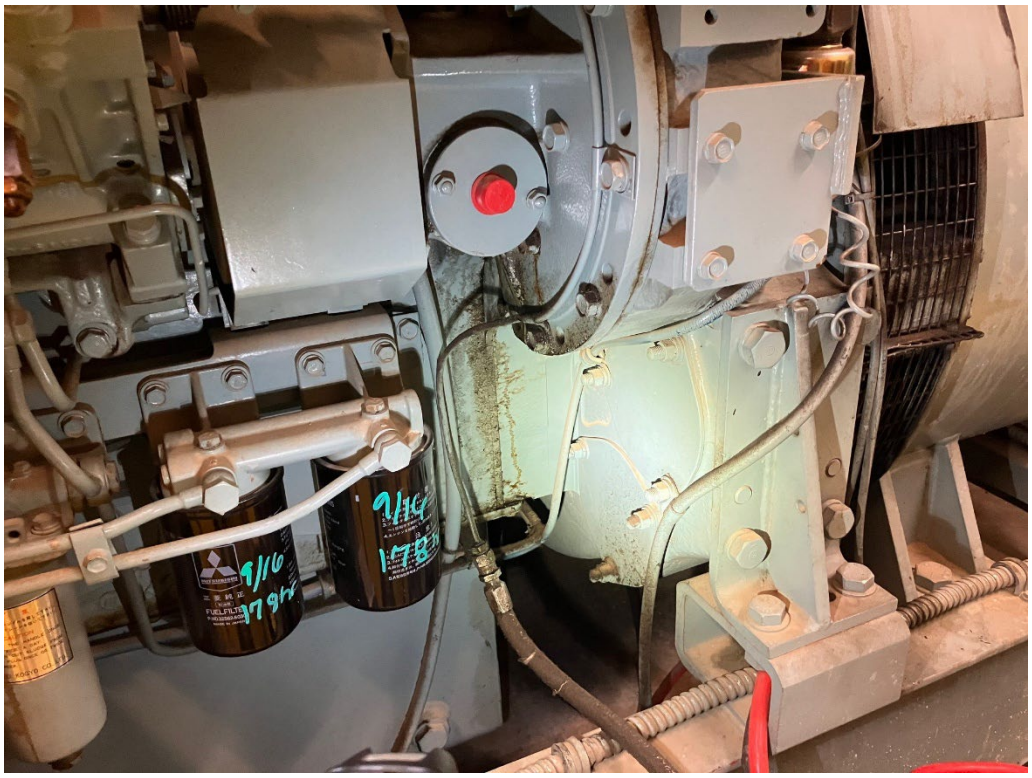




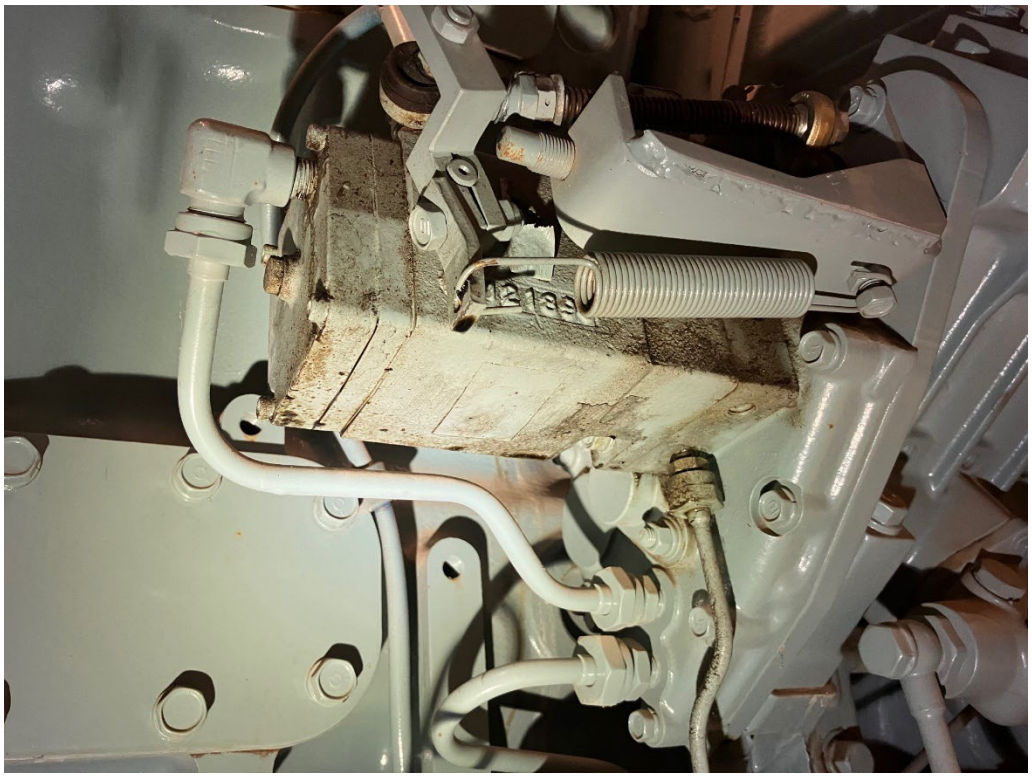




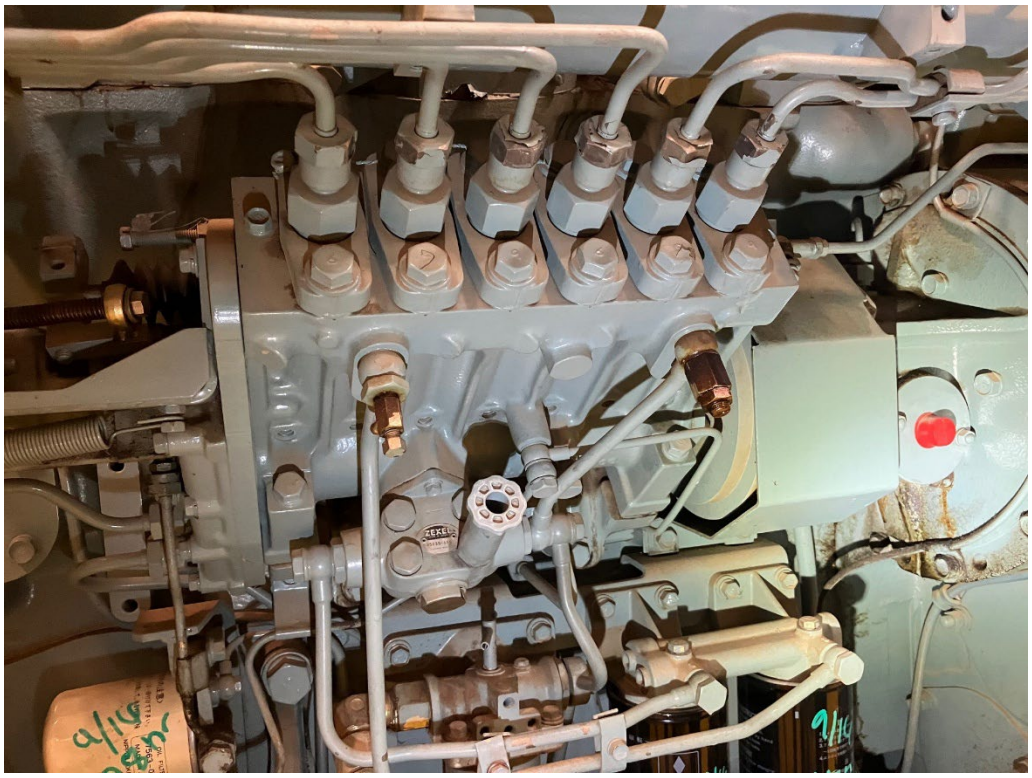

MAGNAMAX
SYNCHRONOUS AC GENERATOR
MARATHON ELECTRIC
WISCONSIN 54401 U.S.A.


9/16
1778

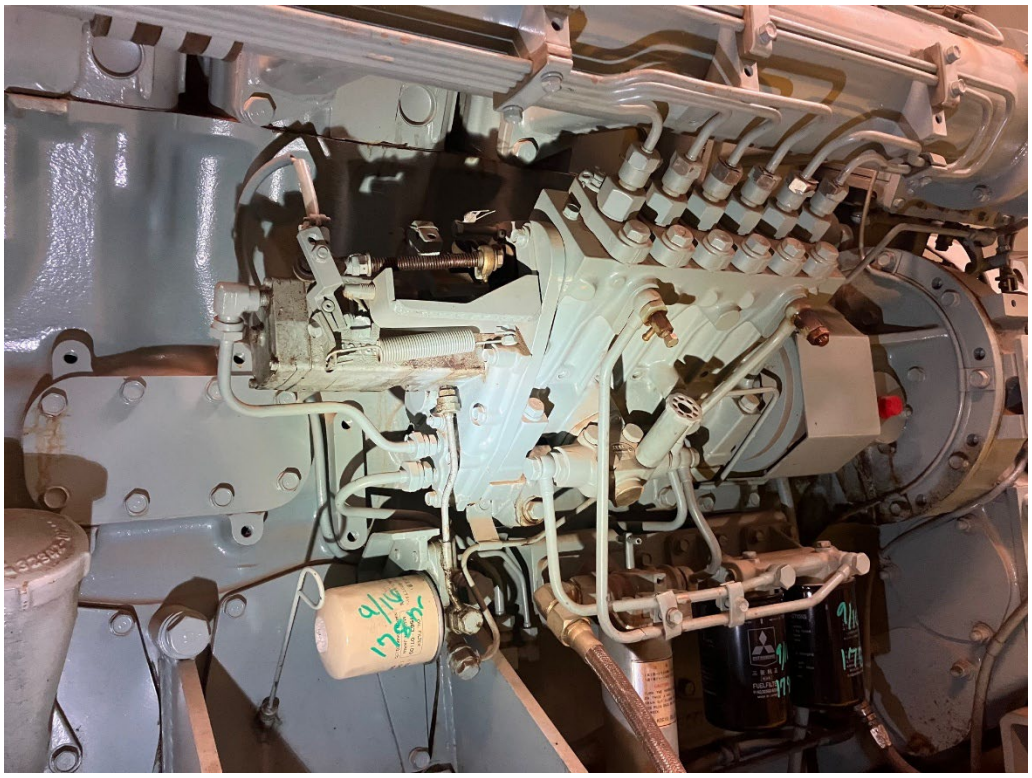

¼ TURNS
9/16
9/16
1778



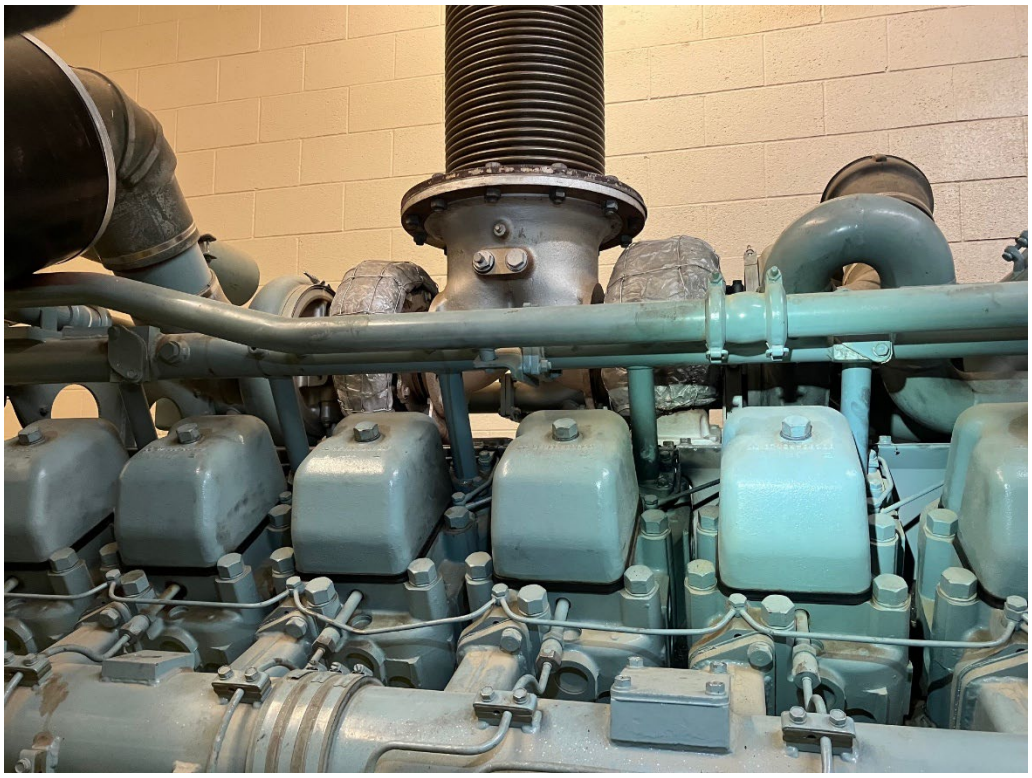












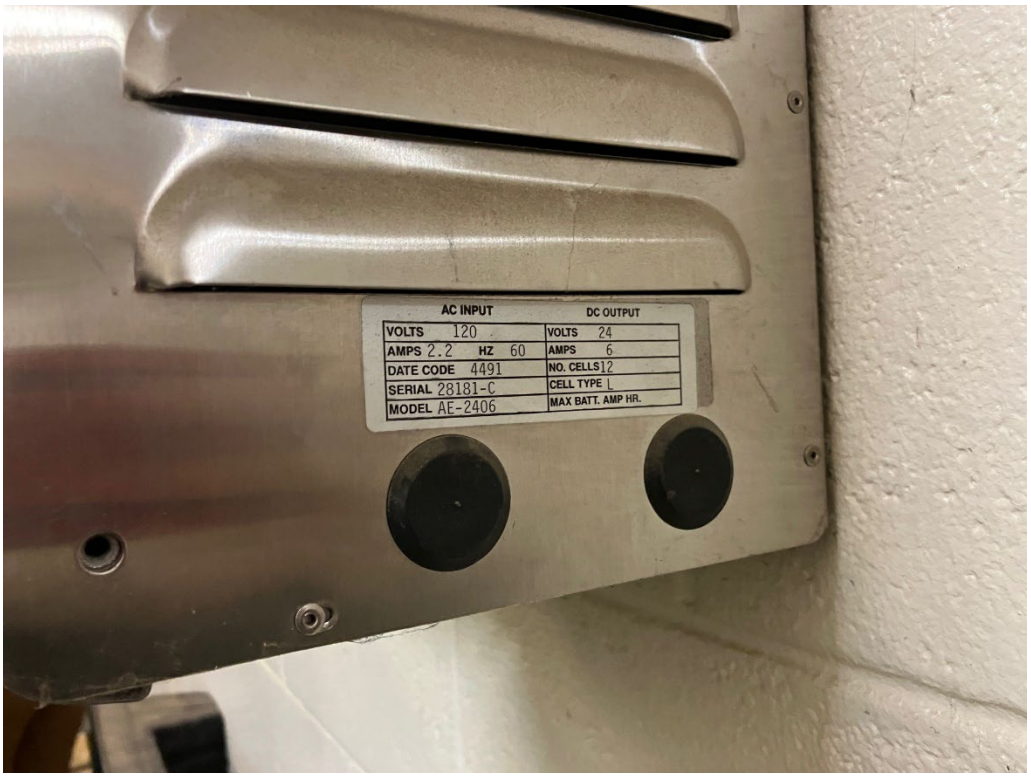




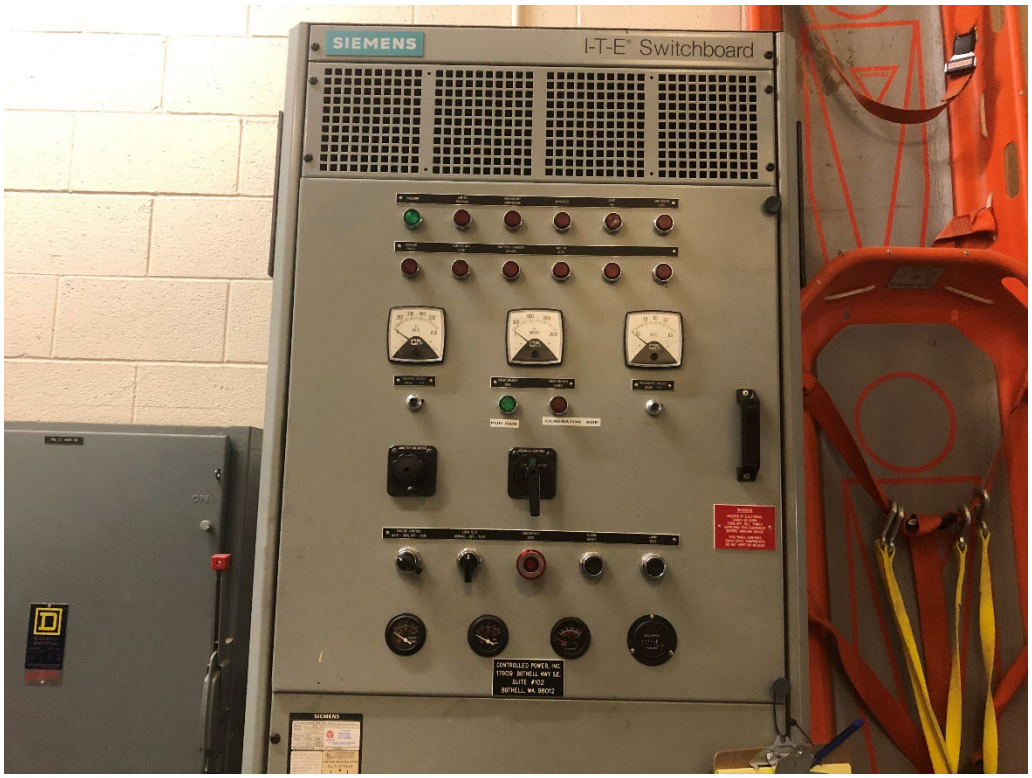


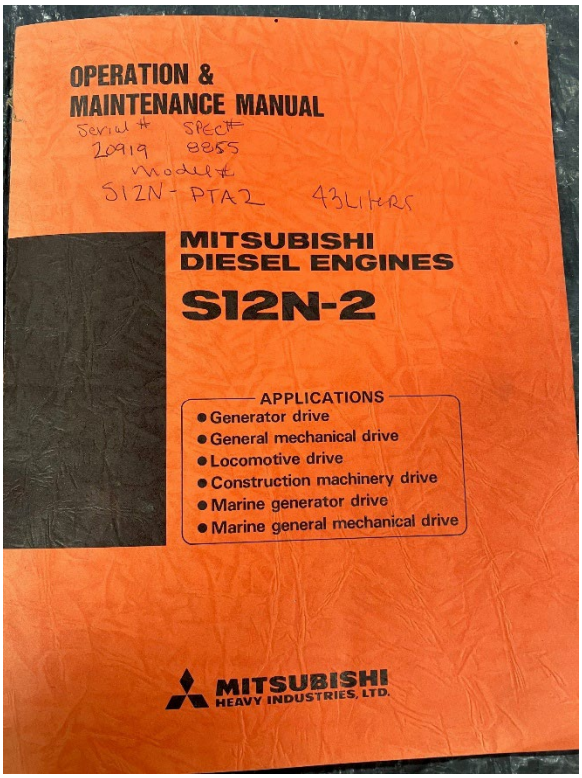

C-CHARGER


C-CHARGER
CONSTANT VOLTAGE OUTPUT
CONTINUOUS DUTY
CAUTION - Hot Surfaces - To reduce the risk of burns - Do not touch
EQUALIZE
FLOAT
EQUALIZE
LIGHT
INPUT PROTECTION
Push to Reset
DC VOLTS
DC AMPERES

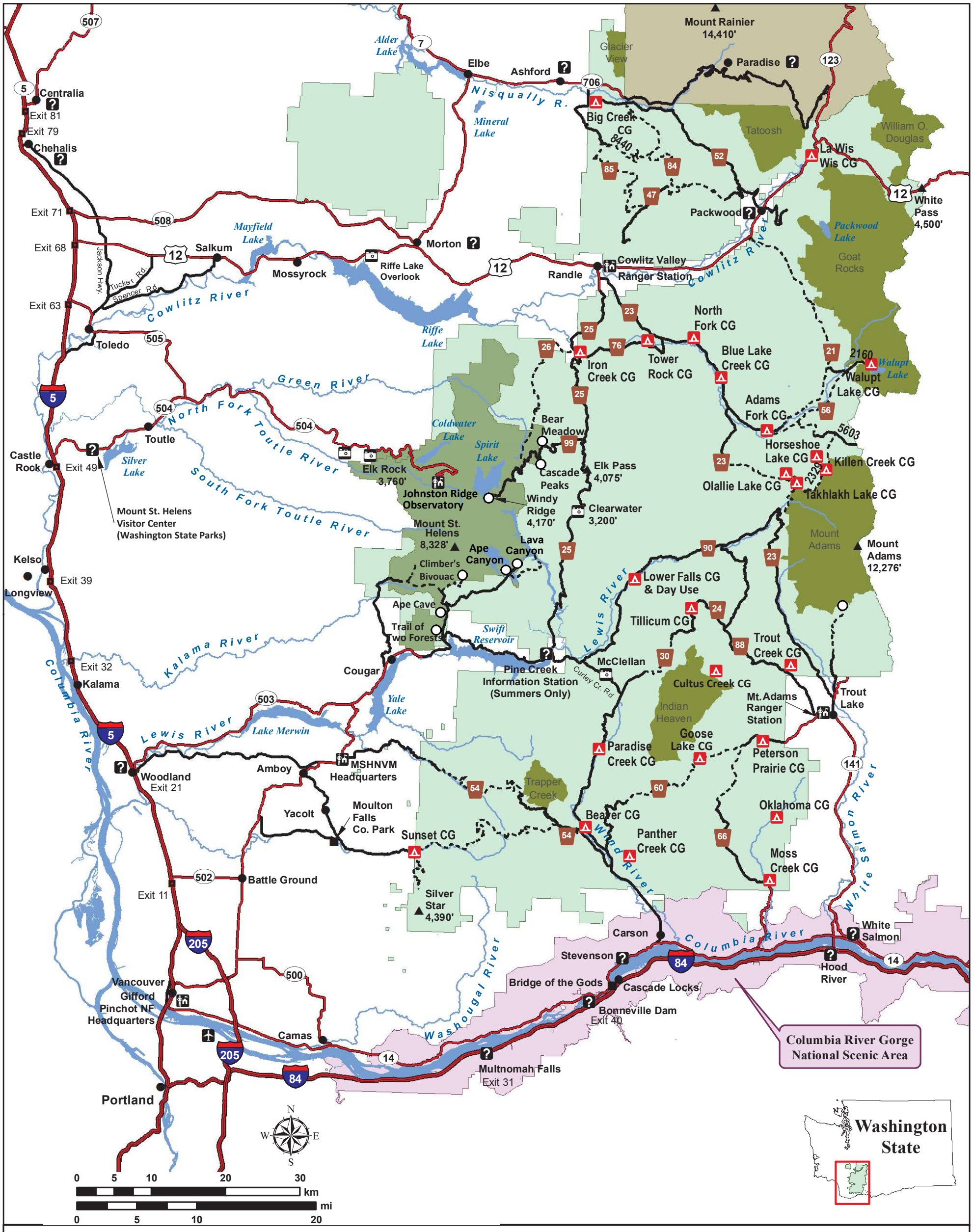

AC INPUT
DC OUTPUT
VOLTS 120
AMPS 2.2 HZ 60
DATE CODE 4491
SERIAL 28181-C
MODEL AE-2406
VOLTS 24
AMPS 6
NO. CELLS 12
CELL TYPE L
MAX BATT. AMP HR.




SIEMENS
I-T-E Switchboard


OPERATION &
MAINTENANCE MANUAL
Serial # SPEC#
20919 8855
model#
S12N-PTA2 43LITERS
MITSUBISHI
DIESEL ENGINES
S12N-2
APPLICATIONS
● Generator drive
● General mechanical drive
● Locomotive drive
● Construction machinery drive
● Marine generator drive
● Marine general mechanical drive
MITSUBISHI
HEAVY INDUSTRIES, LTD.

Gifford Pinchot National Forest Vicinity



For more information, visit our website at:

http://www.fs.usda.gov/giffordpinchot

or call (360) 891-5000

USDA Forest Service is an equal opportunity provider and employer.

Printed May 2019

- Forest Boundary
- Mount St. Helens NVM
- Wilderness Area
- Columbia River Gorge National Scenic Area
- Forest Service Office
- Summit
- City, Town, Community
- Airport
- Recreation Sites
- Campground
- Information
- Interstate Hwy.
- US, State or County Hwy.
- Paved Road
- Gravel Road
- Lakes and River Areas
- Rivers

This map is intended for general reference and is approximate in general proportions.

Elevations are in Feet

"

REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT
By direction of the Secretary of Labor

U.S. DEPARTMENT OF LABOR
EMPLOYMENT STANDARDS ADMINISTRATION
WAGE AND HOUR DIVISION
WASHINGTON D.C. 20210

Daniel W. Simms
Director

Division of
Wage Determinations

Wage Determination No.: 2015-5529
Revision No.: 30
Date Of Last Revision: 8/27/2026

State: Washington

Area: Washington Counties of Cowlitz

Fringe Benefits Required Follow the Occupational Listing

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		21.68
01012 - Accounting Clerk II		24.33
01013 - Accounting Clerk III		27.22
01020 - Administrative Assistant		36.20
01035 - Court Reporter		24.82
01041 - Customer Service Representative I		19.42
01042 - Customer Service Representative II		21.19
01043 - Customer Service Representative III		23.78
01051 - Data Entry Operator I		18.12
01052 - Data Entry Operator II		19.77
01060 - Dispatcher, Motor Vehicle		28.78
01070 - Document Preparation Clerk		19.77
01090 - Duplicating Machine Operator		19.77
01111 - General Clerk I		18.92
01112 - General Clerk II		20.64
01113 - General Clerk III		23.16
01120 - Housing Referral Assistant		27.68
01141 - Messenger Courier		16.11
01191 - Order Clerk I		19.06
01192 - Order Clerk II		21.36
01261 - Personnel Assistant (Employment) I		22.19
01262 - Personnel Assistant (Employment) II		24.82
01263 - Personnel Assistant (Employment) III		27.68
01270 - Production Control Clerk		36.15
01290 - Rental Clerk		20.14
01300 - Scheduler, Maintenance		22.19
01311 - Secretary I		22.19
01312 - Secretary II		24.82
01313 - Secretary III		27.68
01320 - Service Order Dispatcher		25.73
01410 - Supply Technician		36.20
01420 - Survey Worker		24.82
01460 - Switchboard Operator/Receptionist		19.61
01531 - Travel Clerk I		19.77
01532 - Travel Clerk II		22.19
01533 - Travel Clerk III		24.82
01611 - Word Processor I		19.77
01612 - Word Processor II		22.19
01613 - Word Processor III		24.82
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		26.00
05010 - Automotive Electrician		24.61
05040 - Automotive Glass Installer		23.15
05070 - Automotive Worker		23.15
05110 - Mobile Equipment Servicer		20.39
05130 - Motor Equipment Metal Mechanic		26.00
05160 - Motor Equipment Metal Worker		23.15
05190 - Motor Vehicle Mechanic		26.00
05220 - Motor Vehicle Mechanic Helper		18.98
05250 - Motor Vehicle Upholstery Worker		21.80
05280 - Motor Vehicle Wrecker		23.15
05310 - Painter, Automotive		24.61
05340 - Radiator Repair Specialist		23.15
05370 - Tire Repairer		20.39
05400 - Transmission Repair Specialist		26.00
07000 - Food Preparation And Service Occupations		
07010 - Baker		20.32

07041 - Cook I		21.94
07042 - Cook II		24.92
07070 - Dishwasher		17.73
07130 - Food Service Worker		18.49
07210 - Meat Cutter		25.74
07260 - Waiter/Waitress		21.73
09000 - Furniture Maintenance And Repair Occupations		
09010 - Electrostatic Spray Painter		27.71
09040 - Furniture Handler		18.11
09080 - Furniture Refinisher		27.71
09090 - Furniture Refinisher Helper		21.37
09110 - Furniture Repairer, Minor		24.55
09130 - Upholsterer		27.71
11000 - General Services And Support Occupations		
11030 - Cleaner, Vehicles		21.98
11060 - Elevator Operator		22.40
11090 - Gardener		27.48
11122 - Housekeeping Aide		22.40
11150 - Janitor		22.40
11210 - Laborer, Grounds Maintenance		21.67
11240 - Maid or Houseman		17.92
11260 - Pruner		19.79
11270 - Tractor Operator		25.58
11330 - Trail Maintenance Worker		21.67
11360 - Window Cleaner		24.53
12000 - Health Occupations		
12010 - Ambulance Driver		33.60
12011 - Breath Alcohol Technician		33.60
12012 - Certified Occupational Therapist Assistant		46.10
12015 - Certified Physical Therapist Assistant		46.10
12020 - Dental Assistant		22.95
12025 - Dental Hygienist		59.14
12030 - EKG Technician		50.91
12035 - Electroneurodiagnostic Technologist		50.91
12040 - Emergency Medical Technician		33.60
12071 - Licensed Practical Nurse I		30.03
12072 - Licensed Practical Nurse II		33.60
12073 - Licensed Practical Nurse III		37.47
12100 - Medical Assistant		28.11
12130 - Medical Laboratory Technician		31.47
12160 - Medical Record Clerk		26.09
12190 - Medical Record Technician		29.19
12195 - Medical Transcriptionist		30.03
12210 - Nuclear Medicine Technologist		73.85
12221 - Nursing Assistant I		16.70
12222 - Nursing Assistant II		18.79
12223 - Nursing Assistant III		20.50
12224 - Nursing Assistant IV		23.00
12235 - Optical Dispenser		31.20
12236 - Optical Technician		30.03
12250 - Pharmacy Technician		26.62
12280 - Phlebotomist		30.03
12305 - Radiologic Technologist		50.13
12311 - Registered Nurse I		31.94
12312 - Registered Nurse II		39.08
12313 - Registered Nurse II, Specialist		39.08
12314 - Registered Nurse III		47.29
12315 - Registered Nurse III, Anesthetist		47.29
12316 - Registered Nurse IV		56.67
12317 - Scheduler (Drug and Alcohol Testing)		41.62
12320 - Substance Abuse Treatment Counselor		31.32
13000 - Information And Arts Occupations		
13011 - Exhibits Specialist I		24.94
13012 - Exhibits Specialist II		30.89
13013 - Exhibits Specialist III		37.79
13041 - Illustrator I		24.94
13042 - Illustrator II		30.89
13043 - Illustrator III		37.79
13047 - Librarian		34.20
13050 - Library Aide/Clerk		20.93
13054 - Library Information Technology Systems Administrator		30.89
13058 - Library Technician		24.07
13061 - Media Specialist I		22.29
13062 - Media Specialist II		24.94
13063 - Media Specialist III		27.79
13071 - Photographer I		22.14
13072 - Photographer II		24.77
13073 - Photographer III		30.70
13074 - Photographer IV		37.53
13075 - Photographer V		45.41
13090 - Technical Order Library Clerk		23.93
13110 - Video Teleconference Technician		22.29
14000 - Information Technology Occupations		
14041 - Computer Operator I		20.10
14042 - Computer Operator II		22.48
14043 - Computer Operator III		25.06
14044 - Computer Operator IV		27.84
14045 - Computer Operator V		30.84
14071 - Computer Programmer I	(see 1)	20.15
14072 - Computer Programmer II	(see 1)	24.95
14073 - Computer Programmer III	(see 1)	
14074 - Computer Programmer IV	(see 1)	

14101 - Computer Systems Analyst I	(see 1)	
14102 - Computer Systems Analyst II	(see 1)	
14103 - Computer Systems Analyst III	(see 1)	
14150 - Peripheral Equipment Operator		20.10
14160 - Personal Computer Support Technician		27.84
14170 - System Support Specialist		37.93
15000 - Instructional Occupations		
15010 - Aircrew Training Devices Instructor (Non-Rated)		40.34
15020 - Aircrew Training Devices Instructor (Rated)		48.80
15030 - Air Crew Training Devices Instructor (Pilot)		58.51
15050 - Computer Based Training Specialist / Instructor		40.34
15060 - Educational Technologist		35.08
15070 - Flight Instructor (Pilot)		58.51
15080 - Graphic Artist		34.84
15085 - Maintenance Test Pilot, Fixed, Jet/Prop		58.51
15086 - Maintenance Test Pilot, Rotary Wing		58.51
15088 - Non-Maintenance Test/Co-Pilot		58.51
15090 - Technical Instructor		28.48
15095 - Technical Instructor/Course Developer		34.84
15110 - Test Proctor		23.68
15120 - Tutor		23.68
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations		
16010 - Assembler		19.37
16030 - Counter Attendant		19.37
16040 - Dry Cleaner		22.15
16070 - Finisher, Flatwork, Machine		19.37
16090 - Presser, Hand		19.37
16110 - Presser, Machine, Drycleaning		19.37
16130 - Presser, Machine, Shirts		19.37
16160 - Presser, Machine, Wearing Apparel, Laundry		19.37
16190 - Sewing Machine Operator		23.08
16220 - Tailor		23.98
16250 - Washer, Machine		20.30
19000 - Machine Tool Operation And Repair Occupations		
19010 - Machine-Tool Operator (Tool Room)		36.66
19040 - Tool And Die Maker		44.59
21000 - Materials Handling And Packing Occupations		
21020 - Forklift Operator		24.86
21030 - Material Coordinator		36.15
21040 - Material Expediter		36.15
21050 - Material Handling Laborer		19.48
21071 - Order Filler		18.36
21080 - Production Line Worker (Food Processing)		24.86
21110 - Shipping Packer		24.87
21130 - Shipping/Receiving Clerk		24.87
21140 - Store Worker I		17.84
21150 - Stock Clerk		22.85
21210 - Tools And Parts Attendant		24.86
21410 - Warehouse Specialist		24.86
23000 - Mechanics And Maintenance And Repair Occupations		
23010 - Aerospace Structural Welder		40.83
23019 - Aircraft Logs and Records Technician		32.48
23021 - Aircraft Mechanic I		38.73
23022 - Aircraft Mechanic II		40.83
23023 - Aircraft Mechanic III		42.91
23040 - Aircraft Mechanic Helper		28.27
23050 - Aircraft, Painter		36.66
23060 - Aircraft Servicer		32.48
23070 - Aircraft Survival Flight Equipment Technician		36.66
23080 - Aircraft Worker		34.49
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I		34.49
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II		38.73
23110 - Appliance Mechanic		36.66
23120 - Bicycle Repairer		30.37
23125 - Cable Splicer		50.85
23130 - Carpenter, Maintenance		32.96
23140 - Carpet Layer		34.49
23160 - Electrician, Maintenance		44.35
23181 - Electronics Technician Maintenance I		35.83
23182 - Electronics Technician Maintenance II		38.07
23183 - Electronics Technician Maintenance III		40.24
23260 - Fabric Worker		32.48
23290 - Fire Alarm System Mechanic		38.73
23310 - Fire Extinguisher Repairer		30.37
23311 - Fuel Distribution System Mechanic		38.73
23312 - Fuel Distribution System Operator		30.37
23370 - General Maintenance Worker		25.53
23380 - Ground Support Equipment Mechanic		38.73
23381 - Ground Support Equipment Servicer		32.48
23382 - Ground Support Equipment Worker		34.49
23391 - Gunsmith I		30.37
23392 - Gunsmith II		34.49
23393 - Gunsmith III		38.73
23410 - Heating, Ventilation And Air-Conditioning Mechanic		30.96
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)		32.64

23430 - Heavy Equipment Mechanic		38.70
23440 - Heavy Equipment Operator		30.84
23460 - Instrument Mechanic		38.73
23465 - Laboratory/Shelter Mechanic		36.66
23470 - Laborer		19.48
23510 - Locksmith		36.66
23530 - Machinery Maintenance Mechanic		46.61
23550 - Machinist, Maintenance		30.38
23580 - Maintenance Trades Helper		27.14
23591 - Metrology Technician I		38.73
23592 - Metrology Technician II		40.83
23593 - Metrology Technician III		42.91
23640 - Millwright		36.11
23710 - Office Appliance Repairer		36.66
23760 - Painter, Maintenance		25.28
23790 - Pipefitter, Maintenance		38.80
23810 - Plumber, Maintenance		36.72
23820 - Pneudraulic Systems Mechanic		38.73
23850 - Rigger		38.73
23870 - Scale Mechanic		34.49
23890 - Sheet-Metal Worker, Maintenance		38.73
23910 - Small Engine Mechanic		34.49
23931 - Telecommunications Mechanic I		38.03
23932 - Telecommunications Mechanic II		40.08
23950 - Telephone Lineman		38.73
23960 - Welder, Combination, Maintenance		28.78
23965 - Well Driller		38.73
23970 - Woodcraft Worker		38.73
23980 - Woodworker		30.37
24000 - Personal Needs Occupations		
24550 - Case Manager		25.49
24570 - Child Care Attendant		19.61
24580 - Child Care Center Clerk		24.56
24610 - Chore Aide		21.54
24620 - Family Readiness And Support Services Coordinator		25.49
24630 - Homemaker		25.49
25000 - Plant And System Operations Occupations		
25010 - Boiler Tender		37.19
25040 - Sewage Plant Operator		32.48
25070 - Stationary Engineer		37.19
25190 - Ventilation Equipment Tender		27.14
25210 - Water Treatment Plant Operator		32.48
27000 - Protective Service Occupations		
27004 - Alarm Monitor		23.43
27007 - Baggage Inspector		19.49
27008 - Corrections Officer		37.95
27010 - Court Security Officer		37.99
27030 - Detection Dog Handler		21.81
27040 - Detention Officer		37.95
27070 - Firefighter		41.56
27101 - Guard I		19.49
27102 - Guard II		21.81
27131 - Police Officer I		41.09
27132 - Police Officer II		45.64
28000 - Recreation Occupations		
28041 - Carnival Equipment Operator		15.74
28042 - Carnival Equipment Repairer		16.72
28043 - Carnival Worker		12.83
28210 - Gate Attendant/Gate Tender		23.40
28310 - Lifeguard		20.85
28350 - Park Attendant (Aide)		26.17
28510 - Recreation Aide/Health Facility Attendant		19.11
28515 - Recreation Specialist		32.43
28630 - Sports Official		20.85
28690 - Swimming Pool Operator		27.47
29000 - Stevedoring/Longshoremen Occupational Services		
29010 - Blocker And Bracer		34.49
29020 - Hatch Tender		34.49
29030 - Line Handler		34.49
29041 - Stevedore I		32.48
29042 - Stevedore II		36.66
30000 - Technical Occupations		
30010 - Air Traffic Control Specialist, Center (HFO)	(see 2)	50.14
30011 - Air Traffic Control Specialist, Station (HFO)	(see 2)	34.58
30012 - Air Traffic Control Specialist, Terminal (HFO)	(see 2)	38.07
30021 - Archeological Technician I		17.42
30022 - Archeological Technician II		19.48
30023 - Archeological Technician III		24.14
30030 - Cartographic Technician		24.14
30040 - Civil Engineering Technician		30.57
30051 - Cryogenic Technician I		24.66
30052 - Cryogenic Technician II		27.24
30061 - Drafter/CAD Operator I		17.42
30062 - Drafter/CAD Operator II		19.48
30063 - Drafter/CAD Operator III		21.71
30064 - Drafter/CAD Operator IV		26.73
30081 - Engineering Technician I		16.14
30082 - Engineering Technician II		18.13

30083 - Engineering Technician III		20.29
30084 - Engineering Technician IV		25.76
30085 - Engineering Technician V		31.76
30086 - Engineering Technician VI		37.19
30090 - Environmental Technician		24.14
30095 - Evidence Control Specialist		22.28
30210 - Laboratory Technician		21.10
30221 - Latent Fingerprint Technician I		24.66
30222 - Latent Fingerprint Technician II		27.24
30240 - Mathematical Technician		24.14
30361 - Paralegal/Legal Assistant I		22.19
30362 - Paralegal/Legal Assistant II		27.49
30363 - Paralegal/Legal Assistant III		33.63
30364 - Paralegal/Legal Assistant IV		40.68
30375 - Petroleum Supply Specialist		27.24
30390 - Photo-Optics Technician		24.14
30395 - Radiation Control Technician		27.24
30461 - Technical Writer I		24.08
30462 - Technical Writer II		29.52
30463 - Technical Writer III		35.64
30491 - Unexploded Ordnance (UXO) Technician I		31.87
30492 - Unexploded Ordnance (UXO) Technician II		38.56
30493 - Unexploded Ordnance (UXO) Technician III		46.21
30494 - Unexploded (UXO) Safety Escort		31.87
30495 - Unexploded (UXO) Sweep Personnel		31.87
30501 - Weather Forecaster I		26.73
30502 - Weather Forecaster II		32.51
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2)	21.71
30621 - Weather Observer, Senior	(see 2)	24.14
31000 - Transportation/Mobile Equipment Operation Occupations		
31010 - Airplane Pilot		38.56
31020 - Bus Aide		18.95
31030 - Bus Driver		25.70
31043 - Driver Courier		22.37
31260 - Parking and Lot Attendant		17.30
31290 - Shuttle Bus Driver		19.04
31310 - Taxi Driver		17.97
31361 - Truckdriver, Light		24.03
31362 - Truckdriver, Medium		25.70
31363 - Truckdriver, Heavy		30.26
31364 - Truckdriver, Tractor-Trailer		30.26
99000 - Miscellaneous Occupations		
99020 - Cabin Safety Specialist		18.80
99030 - Cashier		17.48
99050 - Desk Clerk		17.99
99095 - Embalmer		31.87
99130 - Flight Follower		31.87
99251 - Laboratory Animal Caretaker I		24.78
99252 - Laboratory Animal Caretaker II		26.62
99260 - Marketing Analyst		34.19
99310 - Mortician		31.87
99410 - Pest Controller		28.47
99510 - Photofinishing Worker		16.75
99710 - Recycling Laborer		21.33
99711 - Recycling Specialist		25.00
99730 - Refuse Collector		19.43
99810 - Sales Clerk		18.60
99820 - School Crossing Guard		19.17
99830 - Survey Party Chief		26.05
99831 - Surveying Aide		15.36
99832 - Surveying Technician		21.04
99840 - Vending Machine Attendant		24.78
99841 - Vending Machine Repairer		30.23
99842 - Vending Machine Repairer Helper		24.78

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least $13.65 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the cor
Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: $5.92 per hour, up to 40 hours per week, or $236.80 per week or $1,026.13 per month

HEALTH & WELFARE EO 13706: $5.42 per hour, up to 40 hours per week, or $216.80 per week, or $939.46 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least $27.63 per hour (or at least $684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

** HAZARDOUS PAY DIFFERENTIAL **

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

** UNIFORM ALLOWANCE **

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an

employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of $3.35 per week (or $.67 cents per day). However, in those instances where the uniforms furnished are made of """"wash and wear"""" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS **

The duties of employees under job titles listed are those described in the """"Service Contract Act Directory of Occupations"""", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) **

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).

2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.

3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the """"Service Contract Act Directory of Occupations"""" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."""

NOTE: **If you use this form, you need to submit enough pages to cover all the information specified. Unless you have very little experience within the requirements of this solicitation, you will need more than one sheet to cover all the work to be reported.**

PAST AND CURRENT CONTRACT INFORMATION **Page _____ of _____ Pages**
(For the past 4 similar deliveries)
OFFEROR'S NAME

CUSTOMER NAME	CONTRACT NO.	BRIEF DESCRIPTION	PRIMARY CONTACT INFORMATION
			NAME:
			VOICE PHONE #:
CUSTOMER ADDRESS			
			FAX PHONE #:
	CONTRACT VALUE	COMPLETION DATE OR % COMPLETE IF ONGOING	SECONDARY CONTACT INFO.
			NAME:
			VOICE PHONE #:
			FAX PHONE #:

CUSTOMER NAME	CONTRACT NO.	BRIEF DESCRIPTION	PRIMARY CONTACT INFORMATION
			NAME:
			VOICE PHONE #:
CUSTOMER ADDRESS			
			FAX PHONE #:
	CONTRACT VALUE	COMPLETION DATE OR % COMPLETE IF ONGOING	SECONDARY CONTACT INFO.
			NAME:
			VOICE PHONE #:
			FAX PHONE #:

JOHNSTON RIDGE OBSERVATORY BACKUP GENERATOR REPAIRS
1240BD27Q0009

Award Type

It is anticipated that a Firm Fixed Price Contract will be awarded as a result of this synopsis/solicitation.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Evaluation and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this solicitation. In lieu of this provision, quotes will be evaluated in accordance with FAR 12.203 based on the criteria listed below.

Technical Approach:

The technical approach will evaluate the ability of the offeror to provide a sound and compliant approach that meets all requirements and shows a thorough understanding of them. It is the contractor's responsibility to ensure their quotation clearly demonstrates their capability to meet these requirements. All offerors must provide the following minimum information and documentation with their quotations to be considered responsive and have their offers evaluated:

- Ability of the offeror to meet the schedule requirements listed in the Statement of Work (SOW).
- Detailed explanation of any requirement listed in the SOW that cannot be successfully accomplished by the quoter.

Price:

The offeror shall provide pricing as requested in the Schedule of Items on page 3 of this Request for Quote. Failure to propose pricing for all individual line items may result in a quotation being excluded from further consideration. The offeror's quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable. **Vendors must provide the following:**

- SF-1449, Complete Blocks 17a., 30a., 30b., and 30c. (include telephone, e-mail, and Unique Entity ID (UEID) in Block 17a.); **DO NOT USE YOUR OWN SF-1449, VENDOR MUST USE THE FORM ATTACHED TO THIS SOLICITATION.**

- Acknowledge and submit all SF-30 Amendments to the solicitation, *if any*, as posted by the CO on the SAM website; *and*

- Complete the Schedule of Items. **DO NOT SUBMIT YOUR OWN PRICING INFORMATION ON YOUR OWN FORMAT. YOU MUST USE THE PROVIDED SCHEDULE OF ITEMS.**

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Note #1: Omitting the UEID from the SF-1449 will prevent the contracting officer (CO) from verifying that your company has an active SAM account. Including the UEID elsewhere in your quotation package will cause your quotation package to be excluded from consideration.

Note #2: Failure to complete each block on the Schedule of Items will cause your quotation package to be excluded from consideration, *which includes math errors and omissions*.

Past Performance:

The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance. Past Performance will be evaluated using the following rating system:

- Acceptable: The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.
- Neutral: Quoter does not have a past performance record.
- Unacceptable: The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

Contractor must submit their past performance by submitting the last 4 contracts, current or past, that are the same as the requested information contained in this Solicitation. Vendors can use the attached past performance sheet on this Solicitation.

Submit offer by email to jorge.somoza@usda.gov so that it is delivered into this inbox by **03 NOVEMBER 2026 BY 2:00 PM.** Emails should contain 3 separate attachments (Technical, Price, and past performance) in Microsoft Word, Excel, or Adobe PDF format **ONLY**. Be aware that large attachments may increase the time required to deliver an email. It is the offerors responsibility to confirm receipt of the offer from jorge.somoza@usda.gov

Address questions about this solicitation to Jorge Somoza at jorge.somoza@usda.gov.
For Technical Questions address them to Heath Cameron at (360) 449-7813 or email heath.cameron@usda.gov

Evaluation Method:

All quotations will be evaluated to identify the offeror presenting the most technically advantageous solution based on the stated evaluation criteria. Once the highest technically rated offeror is

identified, their price will be evaluated to determine whether it is fair and reasonable. Past performance will also be assessed to ensure it is acceptable or neutral.

Award will be made to the offeror whose quote is determined to be the highest technically rated, provided that:

- The proposed price is fair and reasonable, and
- Past performance is assessed as acceptable.

The Government will not necessarily select the lowest-priced quotation.

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

FAR 52.212-1 is amended as follows:

Period for acceptance of offers.

The Offeror agrees to hold the prices in its offer firm for **90 calendar days** from the date specified for receipt of offers.

52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
52.240-90	Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provisions are applicable if checked:

☐ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)

☒ 52.204-7 System for Award Management—Registration (Nov 2025)

☐ Alternate I (Nov 2025) to 52.204-7

☐ 52.204-90 Offeror Identification (Nov 2025)

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☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)
☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
☐ 52.219-2 Equal Low Bids (Nov 2025)
☐ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
☐ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment–Certification (Nov 2025)
☐ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification (Nov 2025)
☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
☐ 52.223-4 Recovered Material Certification (May 2008)
☐ 52.225-2 Buy American Certificate (Oct 2022)
☐ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)
☐ 52.225-6 Trade Agreements-Certificate (Feb 2021)
☐ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
☐ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)

NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Protest Procedures

The United States Department of Agriculture (USDA) is committed to fair, transparent, and efficient acquisitions. Interested parties with concerns about this solicitation are encouraged to seek resolution through the following USDA procedures.

Tier 1: Contracting Officer Concern Resolution

Submission: Interested parties with concerns about either the solicitation or subsequent award should first submit their concern directly to the Contracting Officer, providing sufficient detail to allow the Contracting Officer to understand and assess the issue.

Process: The Contracting Officer will review the concern, seek clarification as needed, and engage with the interested party to attempt prompt resolution.

Review Timeline: The Contracting Officer will make every effort to provide a response or resolution within 10 business days of receiving the concern.

Effect on Award or Performance: Tier 1 engagement is not considered an official notification of filing an agency protest and does not pause solicitation deadlines, delay award decisions, or suspend contract performance.

Next Steps: If the matter cannot be resolved at Tier 1, the interested party may file a written agency protest under Tier 2.
USDA encourages all parties to seek resolution with the Contracting Officer before filing an agency protest.

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Tier 2: Agency Protest
If concerns cannot be resolved at Tier 1, an interested party may file a written agency protest with either the Contracting Officer or the USDA Independent Review Authority. The decision by the USDA Independent Review Authority is an alternative to a decision by the Contracting Officer. The USDA Independent Review Authority will not consider an appeal of the Contracting Officer's decision on an agency protest.
The protest must state whether the protester elects review by the Contracting Officer, by the UDSA Independent Review Authority. If no election is stated, the Contracting Officer will decide the protest.

Required Information: Protests shall include the information set forth in FAR 33.104-4 (a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.

Submission: Agency protests should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Timeliness: Protests must be filed within the timeframes specified in FAR 33.104.

Effect on Award or Performance: Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined to be in the best interest of the Government.

Review Timeline: USDA strives to resolve agency-level protests within 35 business days of receipt.

Election of Forum: By filing a protest with USDA, the protesters agree not to file a protest on the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If such a protest is filed externally, the USDA agency protest will be dismissed.

Questions: Questions regarding this notice or protest procedures should be directed to the Contracting Officer identified in this solicitation.